

Franciscus Dylan Rosario,
7624 Melody
Rohnert Park, CA 94928
E: soltrinox@gmail.com
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

(Related to Case No.: CGC-21-594102)

**EX PARTE APPLICATION FOR
DOCUMENT PRESERVATION ORDER**

Supporting Declaration of Franciscus Dylan
Rosario; [Proposed] Order

PART I: EX PARTE APPLICATION

RELIEF REQUESTED

Plaintiff Franciscus Dylan Rosario applies ex parte for an order directing all Defendants to preserve, maintain, and refrain from destroying, altering, concealing, or disposing of the documents and records identified below. This application is made on the grounds that Defendants are now on notice of fraud-on-the-court allegations, that the records sought are critical to proving what was in the defense file, what Defendants knew, and what CSAA directed, and that without a preservation

1 order, there is a substantial risk of spoliation.

2 **NOTICE**

3 Plaintiff has provided notice of this ex parte application to all Defendants by email and telephone
4 in compliance with Cal. Rules of Court, rule 3.1203.

5 **GROUND FOR EX PARTE RELIEF**

6 **A. Irreparable Harm Without Immediate Relief**

7 Ex parte relief is appropriate where the applicant demonstrates “irreparable harm, immediate dan-
8 ger, or any other statutory basis for granting relief ex parte.” (Cal. Rules of Court, rule 3.1202(c).)
9 Here, the records targeted by this application are uniquely within Defendants’ custody and control.
10 Once destroyed, altered, or purged, they cannot be reconstructed. The harm is irreparable because:

- 11 1. **The complaint alleges fraud on the court.** Defendants are now on notice that their internal
12 communications, billing records, and file transfer documentation are the evidence needed to
13 prove the three-leg framework.
- 14 2. **Defendants have motive to destroy.** The internal records will show what was in the defense
15 file when it transferred from Chambers to PSA on May 4, 2023, what PSA knew about the
16 production history, and what CSAA directed.
- 17 3. **PSA’s file-retention obligations are uncertain.** PSA was substituted out of the underlying
18 action (replaced by Smith Koyama & Costello per the August 6, 2025 substitution). PSA’s
19 file-retention obligations for a former client’s case may not extend indefinitely, and without a
20 preservation order, PSA may purge the file in the ordinary course.
- 21 4. **CSAA may purge claim file records.** Insurers routinely purge claim files after closure. The
22 underlying claim was closed by the April 25, 2025 judgment. Without a preservation order,
23 CSAA’s ordinary-course records retention may result in destruction of adjuster notes, diary
24 entries, and internal correspondence.
- 25 5. **Vehicle and policy records at risk.** Plaintiff has reason to believe that the proof of insurance
26 presented at the collision scene may have been for a different vehicle (a Toyota) than the Ford
27 Transit commercial van involved in the incident. Body-worn camera footage from respond-

ing officers may show the insurance card presented. There is a substantial concern that the policy covering the incident vehicle may have been fabricated, backdated, or added after the collision. Policy records, underwriting files, and vehicle schedules are essential to establish when the policy was issued, what vehicles were covered, the classification of each vehicle (commercial vs private use), and whether the policy for the incident vehicle was active prior to February 4, 2021.

FACTUAL BASIS

The Complaint alleges that defense counsel made false representations to the Court about receipt, possession, and prior production of critical incident recordings, and that CSAA funded, directed, and controlled the defense. Additionally, Plaintiff alleges that the proof of insurance presented at the collision scene on February 4, 2021, was for a Toyota, not the Ford Transit commercial van involved. This discrepancy raises questions as to whether the policy covering the incident vehicle existed prior to the collision, whether it was later created or modified, whether the vehicle's commercial use was disclosed to the insurer, and whether the policy records accurately reflect what was in effect on the date of loss.

RECORDS TO BE PRESERVED

A. Phillips, Spallas & Angstadt LLP (PSA)

1. All internal communications (emails, memoranda, instant messages) regarding the defense file in *Rosario v. Abdelhalim*, CGC-21-594102, from May 4, 2023 through trial (April 25, 2025).
2. All billing records and time entries reflecting work on the case, including work related to preparation of Motions in Limine Nos. 6 and 17.
3. All file transfer documentation, inventories, and correspondence regarding the receipt of the defense file from Carbone Smith & Koyama on or about May 4, 2023.
4. All email correspondence with CSAA Insurance Exchange regarding the defense file, evidence, or litigation strategy.
5. All records reflecting receipt, review, or awareness of the 911 audio recording, body-worn

1 camera footage, CAD log, and supplemental police report, including body-worn camera
2 footage from the collision scene that may show the proof of insurance or insurance card
3 presented to responding officers (Plaintiff alleges the card shown was for a Toyota, not the
4 Ford Transit commercial van involved).

5 **B. Carbone Smith & Koyama (formerly Chambers)**

- 6 1. All file transfer documentation, inventories, and correspondence regarding the transfer of the
7 defense file to PSA on or about May 4, 2023.
8 2. All records reflecting the contents of the defense file as of the transfer date.
9 3. All correspondence with PSA regarding the defense file handoff.

10 **C. CSAA Insurance Exchange**

- 11 1. The complete claim file for the Abdelhalim claim, including all adjuster notes, diary entries,
12 and internal correspondence from February 4, 2021 through the present.
13 2. All litigation management records, instructions, and correspondence with defense counsel
14 (Chambers, Carbone Smith & Koyama, PSA) regarding the defense of CGC-21-594102.
15 3. All records reflecting CSAA's investigation of the collision before, during, and after the
16 February 25, 2021 denial letter.
17 4. **All policy records for Defendant Subhi Abdelhalim**, including: (a) policy declarations,
18 policies, endorsements, and binders; (b) policy issuance dates, effective dates, and expiration
19 dates for all policies from at least January 1, 2020 through the present; (c) vehicle sched-
20 ules listing all vehicles covered (year, make, model, VIN); (d) classification of each vehicle
21 (commercial vs private use) as disclosed to and recorded by CSAA; (e) underwriting file, ap-
22 plication materials, and all disclosures regarding vehicle use and classification; (f) any policy
23 changes, additions, or amendments made on or after February 4, 2021; (g) records reflect-
24 ing when the policy covering the Ford Transit commercial van was first issued or added and
25 whether that coverage was in effect prior to the collision.
26 5. All records reflecting or documenting the proof of insurance (insurance card) presented at the

1 collision scene on February 4, 2021.

2 **D. Subhi Abdelhalim**

- 3 1. All communications with defense counsel and CSAA regarding the 911 recording, BWC
4 footage, or CAD log.
5 2. All communications with CSAA regarding the claim and defense.
6 3. **All vehicle and policy records**, including: (a) all insurance policies, declarations pages,
7 insurance cards, and proof-of-insurance documents for January 1, 2020 through the present;
8 (b) vehicle registration records for all vehicles owned, leased, or operated; (c) all applications,
9 disclosures, and communications to insurers regarding vehicle use, purpose, classification,
10 and the vehicles to be covered; (d) any documents reflecting what proof of insurance was
11 presented to law enforcement at the collision scene on February 4, 2021.

12 **LEGAL AUTHORITY**

13 The Court has inherent authority to issue preservation orders to protect the integrity of pending
14 litigation. (See *Dodge, Warren & Peters Ins. Services, Inc. v. Riley* (2003) 105 Cal.App.4th 1414,
15 1420.) A preservation order is appropriate where there is a reasonable basis to believe that relevant
16 evidence may be lost or destroyed. (*Cedars-Sinai Med. Ctr. v. Superior Court* (1998) 18 Cal.4th
17 1, 12.)

18 Spoliation of evidence after a party is on notice of its relevance gives rise to adverse inferences
19 (Evid. Code, § 413) and sanctions (Code Civ. Proc., § 2023.030). A preservation order ensures
20 that any subsequent destruction triggers these remedies.

21 **CONCLUSION**

22 Plaintiff respectfully requests the Court issue the attached Proposed Order directing all Defendants
23 to preserve the records identified above for the duration of this litigation.

PART II: DECLARATION OF FRANCISCUS DYLAN ROSARIO

I, Franciscus Dylan Rosario, declare as follows:

1. I am the Plaintiff in this action, proceeding in pro per. I have personal knowledge of the facts stated herein, and if called as a witness, I could and would testify competently to them.
2. On or about February 27, 2026, I completed service of the Complaint in this action on all Defendants. The Complaint alleges an independent action in equity to set aside the judgment in *Rosario v. Abdelhalim*, CGC-21-594102, on the ground that the judgment was procured through extrinsic fraud on the court.
3. The Complaint alleges that Defendants Phillips, Spallas & Angstadt LLP, Priya D. Navaratnasingham, and Alberto Reyna made false representations to the Court about their receipt, possession, and knowledge of critical incident recordings, including a 911 audio recording, body-worn camera footage, and CAD log. The Complaint further alleges that Defendants Michael R. Chambers and Carbone, Smith & Koyama transferred the defense file to PSA on May 4, 2023, without ensuring proper documentation of the production history, which enabled successor counsel to make those false representations. The Court relied on these representations to exclude evidence and deny continuances.
4. The Complaint further alleges that Defendant CSAA Insurance Exchange funded, directed, and controlled the defense in CGC-21-594102.
5. I am concerned about the preservation of internal records for the following reasons:
 - (a) **PSA's uncertain file-retention obligations.** PSA was substituted out as defense counsel in the underlying action on or about August 6, 2025. As former counsel for a client now represented by different attorneys, PSA's obligations to retain the defense file may be limited or uncertain.
 - (b) **Motive to destroy.** All Defendants are now on notice that the Complaint alleges fraud on the court based on false representations about evidence possession. Defendants have a motive to destroy or alter records that could confirm the allegations.
 - (c) **CSAA's claim file retention.** The underlying claim was closed by the April 25, 2025 judgment. Insurers routinely purge claim files after a period following claim closure.

1 (d) **File transfer records.** The contents of the defense file on the May 4, 2023 transfer date
2 are critical to proving Leg 1 of the complaint's three-leg framework.

3 (e) **Vehicle and policy records.** Plaintiff has reason to believe that the proof of insurance
4 presented at the collision scene was for a Toyota, not the Ford Transit commercial van
5 involved. Body-worn camera footage from the scene may document this. There is a
6 substantial concern that the policy covering the incident vehicle may have been fabri-
7 cated, backdated, or added after the collision. CSAA's policy records, underwriting files,
8 vehicle schedules, and Abdelhalim's policy-related documents are essential. Without
9 preservation, these records may be altered or purged.

10 6. I believe that without a preservation order, there is a substantial risk that some or all of these
11 records will be destroyed, altered, or purged before they can be obtained through formal
12 discovery.

13 7. I have provided notice of this ex parte application to all Defendants by email and telephone.

14 I declare under penalty of perjury under the laws of the State of California that the foregoing is
15 true and correct.

16 Dated: _____, 2026

17 

18 FRANCISCUS DYLAN ROSARIO

1 **PART III: [PROPOSED] ORDER GRANTING EX PARTE APPLICA-**
2 **TION**

The Ex Parte Application of Plaintiff Franciscus Dylan Rosario for a Document Preservation Order having come before this Court, and good cause appearing therefor,

IT IS HEREBY ORDERED that:

1. All Defendants, and each of them, shall immediately preserve, maintain, and refrain from destroying, altering, concealing, transferring, or disposing of the following records:
 - (a) **Phillips, Spallas & Angstadt LLP:** All internal communications, billing records, time entries, file transfer documentation, and correspondence regarding the defense file in *Rosario v. Abdelhalim*, CGC-21-594102, from May 4, 2023 through the present.
 - (b) **Michael R. Chambers; Carbone, Smith & Koyama:** All file transfer documentation, inventories, and correspondence regarding the transfer of the defense file to PSA on or about May 4, 2023.
 - (c) **CSAA Insurance Exchange:** The complete claim file, including all adjuster notes, diary entries, internal correspondence, and litigation management records; and all policy records for Abdelhalim, including policy declarations, issuance and effective dates, vehicle schedules (year, make, model, VIN), vehicle classification (commercial vs private use), underwriting file, any policy changes after February 4, 2021, and records showing when the policy covering the Ford Transit commercial van was first issued or added and whether it was active prior to the collision.
 - (d) **Subhi Abdelhalim:** All communications with defense counsel and CSAA regarding the 911 recording, BWC footage, CAD log, and the claim and defense; and all vehicle and policy records, including insurance policies, declarations, insurance cards, proof-of-insurance documents, vehicle registration records, applications and disclosures to insurers regarding vehicle use and classification, and any documents reflecting what proof of insurance was presented at the collision scene.
2. This Order shall remain in effect for the duration of this litigation unless modified by further order of the Court.
3. Violation of this Order may result in sanctions, including adverse inferences (Evid. Code, § 413), monetary sanctions (Code Civ. Proc., § 2023.030), and such other relief as the Court deems appropriate.
4. Plaintiff shall serve a copy of this Order on all Defendants within 48 hours of its issuance.

Date: _____, 2026

Judge, Superior Court of the State of California

County of San Francisco